

25NNCV06250 25NNCV06250

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-10

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Case Number: 25NNCV06250 Hearing Date: July 10, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION BE RELIEVED AS
COUNSEL

Hearing Date: 7/10/26¿

CASE NO./NAME: 25NNCV06250 Jordyn Green-Brown v. Brady
Trucking, Inc., et al.

Moving Party: Plaintiff's Counsel

Responding Party: None

Notice: Sufficient¿

Ruling: GRANTED

NOTICE

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email
at or by telephone at (818) 260-8422.

BACKGROUND

Attorney Vanessa

Fantasia, Esq. (Plaintiff's Counsel) represents Plaintiff Jordyn Green-Brown (Plaintiff). Plaintiff's Counsel moves to be relieved as counsel, citing an irremediable breakdown in attorney-client communication. No opposition has been filed.

LEGAL STANDARD

The court may order that an attorney be changed or substituted at any time before or after judgment or final determination upon request by either client or attorney and after notice from one to the other. (Code of Civ. Proc., § 284(2).) "The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court." (Manfredi & Levine v. Superior Court (1998) 66 Cal.App.4th 1128, 1133.)

An application to be relieved as counsel must be made on Judicial Council Form MC-051 (Notice of Motion and Motion) (Cal. Rules of Court, rule 3.1362(a)), MC-052 (Declaration) (Cal. Rules of Court, rule 3.1362(c)), and MC-053 (Proposed Order) (Cal. Rules of Court, rule 3.1362(e)). The proposed order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. (Cal. Rules of Court, rule 3.1362(e).)

Further, the requisite forms must be served on the client and all other parties who have appeared in the case. (Cal. Rules of Court, rule 3.1362(d).) The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court. (Cal. Rules of Court, rule 3.1362(e).) A motion to withdraw will not be granted where withdrawal would prejudice the client. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

DISCUSSION

Counsel has filed the notice of motion to be relieved as counsel on form MC-051. (Cal. Rules of Court, rule 3.1362(a)), a declaration on form MC-052 (Cal. Rules of Court, rule 3.1362(c)), and proposed order on form MC-053. (Cal. Rules of Court, rule 3.1362(e).) Counsel's declaration and the proposed order list the upcoming hearings in the action. (Decl., ¶ 5; Proposed Order, ¶ 7.)

Plaintiff's

Counsel declares that their office began having issues communicating with Plaintiff. (Decl., ¶ 2.) Counsel declares that the lack of communication has created an irremediable breakdown in attorney-client communication. (Ibid.)

The Court

finds that Plaintiff's Counsel has set forth sufficient grounds to be relieved as counsel for Plaintiff. Also, the motion complies with the requirements of California Rules of Court, rule 3.1362. Given that trial is not set, and Plaintiff has not opposed the motion, the Court finds that withdrawal at this stage of litigation will not prejudice Plaintiff. Plaintiff has not filed an opposition contending otherwise.

CONCLUSION

AND ORDER

Attorney Vanessa Fantasia, Esq.'s motion to be relieved as counsel is GRANTED.

Hon. Victor Avila

Judge of the Superior Court